

Ms Dhanluxmi Stone Crusher v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 12 February 2024 · 2024:AHC:24062-DB · WRIT - C No. 3834 of 2024 · **Objections under clause 6.5 to be decided in four weeks; demand stayed**

HEADNOTE

Petition disposed of with a direction that the consumer's objections to an electricity demand be decided under clause 6.5 of the U.P. Electricity Supply Code, 2005 within four weeks. Until that decision, the demand shall not be enforced. The Court did not examine the correctness of the demand.

FACTUAL SUMMARY

Ms Dhanluxmi Stone Crusher, through proprietor Meghraj Garg, approached the Allahabad High Court against the State of U.P. and two others. The firm was aggrieved that the respondents were seeking to enforce a demand. The petitioner said it had disputed that demand, and that the respondents were bound to decide the dispute under clause 6.5 of the Electricity Supply Code, 2005, but had not done so. Counsel for the respondents told the Court that the objections would be decided appropriately under the Code.

HOLDING-UNITS

HOLDING-UNIT · U.P. Electricity Supply Code, 2005, clause 6.5

objections to a disputed demand

HOLDING

Where the consumer has disputed a demand and the objections remain undecided, those objections are to be decided under clause 6.5 of the U.P. Electricity Supply Code, 2005 within four weeks, and until they are decided the demand shall not be enforced. ¶ 2-5

PRINCIPLE TAGS

clause-6.5-pending-representation-to-be-decided On the respondents' statement that the objections would be decided under the Code, the Court directed that the pending objections to the demand be decided within four weeks. ¶ 2-4

para-6.5-objection-before-coercive-recovery The demand raised by the respondents shall not be enforced until the petitioner's objections are decided. ¶ 4

6.5-pending-complaint-writ-remitted The writ was disposed of by sending the undecided objections back for a decision under clause 6.5, without a finding on the demand. ¶ 4-5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS AND QUANTIFICATION OF THE DISPUTED DEMAND

Left to be decided on the petitioner's objections under clause 6.5. ¶ 2-4